

APPENDIX C

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS DIVISION OF CONSERVATION SERVICES

251 Causeway Street
Boston, MA 02114-2150
(617) 626-1012

DATE: _____

MUNICIPALITY: Boxford

NUMERIC ASSIGNMENT: Boxford CR #

CONSERVATION RESTRICTION FIELD INSPECTION

1. MUNICIPALITY: Boxford LOCATION (street, road, etc): Main Street
2. GRANTOR: Town of Boxford GRANTEE: BTA/BOLT, Inc. (Boxford Trials Association/Boxford Open Land Trust)
3. NEW SITE: ☒ ADDITION TO SITE: _____ TOTAL ACRES: 4.5 TERM: In Perpetuity
4. ARE BUILDINGS INCLUDED? ☐ YES ☒ NO
If yes, estimate value, condition, and existing or proposed use. (include photographers and negatives)
5. PRESENT AND PAST USE OF SUBJECT PROPERTY AND ADJACENT LANDS:
(please include USGS topographical maps showing subject and adjacent public lands, if any)
Historic use as hay fields.
6. BRIEF DESCRIPTION OF PROPERTY INCLUDING NATURAL RESOURCES AND ANY UNIQUE FEATURES:
More or less level, open field with wooded border and stone wall along road on northern edge, intermittent stream at western edge, Fish Brook and associated floodplain and wetland areas to the south of the field, and a single family residence with lawn to the east.
 - a. Are prohibited activities sufficient to protect the resource values? ☒ Yes ☐ No
 - b. Are retained uses compatible with the preservation or protection of the natural resources?
☒ Yes ☐ No (if answers to 6a or 6b are no, please explain in 8 below)
7. ARE PUBLIC ACTIVITIES PERMITTED? ☒ Yes ☐ No If yes, please explain NATURE and SCOPE:
Passive recreation, agriculture, silviculture and ecological restoration uses are permitted subject to limitations in the Conservation Restriction.
8. COMMENTS AND RECOMMENDATIONS:
The Town of Boxford purchased the Davis Hayfield in order to preserve agricultural vistas along Main Street deemed vitally important to the rural and agrarian character of the Boxford Village Center and the Boxford Historic District (which includes the subject parcel), and to ensure continued use of the parcel as a hay field and woodlot. The purpose of the Conservation Restriction is to provide added assurance that the purpose of the acquisition will be achieved, and that important vistas and uses will remain protected on the site in perpetuity.

INSPECTOR [Signature]

DATE: 6/21/08

ACCOMPANIED BY _____

MUNICIPAL CERTIFICATION¹

(We) the undersigned Conservation Commission of Boxford, Massachusetts (the certifier) hereby certify that the proposed conservation restriction is in the public interest in that it (describe public benefit):

The Town of Boxford purchased the Davis Hayfield in order to preserve agricultural vistas along Main Street deemed vitally important to the rural and agrarian character of the Boxford Village Center and the Boxford Historic District (which includes the subject parcel), and to ensure continued use of the parcel as a hay field and woodlot. The purpose of the Conservation Restriction is to provide added assurance that the purpose of the acquisition will be achieved, and that important vistas and uses will remain protected on the site in perpetuity.

Date: 6/19/2008

Signed:

Bernard White
John M. Powell
Pete Nichols
Lana L. Sargent Spillman
John M. Powell

¹ This certification by the conservation commission may be submitted separately from the application and filed with the submission of the executed conservation restriction, it being recognized that the applicant may want to submit the application with a draft copy of the conservation restriction for review prior to actual submission of the executed document.

Conservation restriction lands which overlap municipal boundaries must be approved and certified by the appropriate officials of both municipalities.

The commissioners' certification should state why the property is significant and why the conservation restriction is important.

From: Francis A. DiLuna
Sent: Monday, August 04, 2008 4:59 PM
To: 'Mymol@aol.com'
Subject: RE: Davis Hayfield

Thank you my son's wedding was a great event.

You have mentioned several times that I, as a Conservation Commissioner, have signed off on the Davis Hayfield CR.

You are correct. However an event that occurred before the Con Com has made me rethink my position on having third party entities controlling town owned land. I fully realize that a CR is necessary for perpetual protection of the property. However, that does not mean that the entity needs to make the decisions as to activities that occur on that land. The Town's citizens purchased the property and should control the property. In a case like the Davis hay field, Town boards such as the Conservation Commission, Historical Commission with the advise of the Agricultural Commission should be the entities controlling the activities, as set forth in the statute, that the CR does limit or condition. If BOLT, as the holder of the CR, believes those boards are not operating within the spirit of the CR then BOLT has recourse. But I do not believe BOLT should exert it control over and above appropriate municipal entities.

The event I speak of concerned the Conservation Commission's deliberation as to where the location of the parking lot should be on the Cargill Hayfield. It was stated by you that the CR that was executed by the Commission not 30 minutes earlier gave BOLT the authority, not the Town or the Conservation Commission as owners of the fee interest of the property, the right to make such decisions. The issue was moving the parking lot from the designated, mapped and sent to Self-Help location to the corner on Middleton and Main. I felt that this was not the intent of the Town when voting to purchase, nor the language of the CR. I do not believe that to be true. BOLT is a great organization and a great watch dog for CR compliance but I do not believe it should have regulatory authority or control of town owned land.

With respect to the tax issues I raised. It was not the tax status of BOLT that I was questioning. I am sure that you have wonderful attorneys and tax experts watching over things. My issue concerned the "Extinguishment" section in the draft CR. I believe the direction of "a court of competent jurisdiction" is contrary to Article 97 which calls for a vote of 2/3rd of the Legislature. It is the policy of the Executive Office to not allow municipalities that have offending CRs to participate in the Self Help Grant Programs. That would not be good for Boxford.

I trust the above sufficiently sets forth my feeling on the subject matter.

Francis A. DiLuna
 Partner
 fdiluna@murthalaw.com

*DiLuna out-
 Voted by Cons.
 Com - BOLT
 simply stated
 the fact of the
 CR. - Grantlee
 permission to
 change parking
 lot.*

Looking for a car that's sporty, fun and fits in your budget? Read reviews on AOL Autos.

Subj: **RE: Davis Hayfield**
 Date: 8/4/2008 4:59:51 P.M. Eastern Daylight Time
 From: fdiluna@murthalaw.com
 To: Mymol@aol.com

Thank you my son's wedding was a great event.

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Francis A. DiLuna
 Partner
 fdiluna@murthalaw.com

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Monday, August 04, 2008 AOL: Mymol

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From: Mymol@aol.com [mailto:Mymol@aol.com]

Sent: Monday, July 28, 2008 9:26 AM

To: Francis A. DiLuna

Cc: CHIPPIP@aol.com; alliechase@webtv.net; b.-o.shade@comcast.net; kmc.iorio@mindspring.com; trzebaw@verizon.net; sadmd1@verizon.net; georgehorner407@comcast.net; pbfrench@verizon.net; amsbox@comcast.net; relwell40@yahoo.com; jwalk0115@juno.com; nancymerrill@comcast.net; marybeth.stevens@comcast.net; Davebevingalls@cs.com; CJCConsultCo@aol.com

Subject: Davis Hayfield

Good Morning!

Frank, I hope you had a great trip to your son's wedding.

Chuck Costello has told me that you have some concerns regarding the CR on the Davis Hayfield. Would you please share them with me, so that we can better address them.

As you know, this CR was reviewed a few years ago (2004) by the ConsCom and has been signed off on by the Conservation Commission (yourself included) and the corrected (by EOEA) version returned to them. It now awaits the Selectmen's signature.

I have also learned that there are concerns about the "legality" of BTA/BOLT, Inc. as a 501(c)3 corporation. We are happy to bring our documents from the IRS and the MA Dept. of Revenue to the meeting, hopefully scheduled for August 11. Or, I can drop them off at Kathy Carleton's desk for the record.

Thank you.

Natasha for BTA/BOLT, Inc.

Get fantasy football with free live scoring. Sign up for FanHouse Fantasy Football today.

Subj: **Article 97**
Date: 8/11/2008 4:00:36 P.M. Eastern Daylight Time
From: bford@massaudubon.org
To: amsbox@comcast.net, CHIPPIP@aol.com, Mymol@aol.com

I am not sure what issues if any Frank now has re: Article 97 – if anyone knows maybe I can help clear them up. I have informed him of the below previously, but maybe he has other issues?

Article 97 approval is not needed for this CR because although it is a transfer of interest (disposition) by the Town (and all transfers of town interests in conservation land require Art. 97 approval), this CR transfer was required as part of compliance with the use of CPA funds which by statute such lands have to be restricted. Such restrictions when conveyed as part of a land acquisition project involving CPA funds (like this one) do not need separate Art. 97 approval.

Also, this is not a CR purchase. The Town has already bought the land using CPA funds. This is a CR transfer from the Town to BTA after the acquisition of land pursuant to CPA purchase. CPA says all lands acquired using such CPA funds must be appropriately restricted as is being done.

I am not aware of any requirement that Article 97 be referenced in the deed to the Town or in the CR to BTA and I have not seen a CR with such language. Art. 97 applies as a matter of law if the Town tried to dispose of the land in the future.

If I can help clarify Art. 97 issues, let me know.

PS. I don't mean to blow this issue out of proportion, but BTA is the one who should hold and negotiate this CR, not the Ag Comm or another entity.

This was BTA's project, not the Ag Comms. BTA worked to form the relationship with the landowners making conservation possible (not the Ag Comm), BTA negotiated a discounted price for the Town making the purchase reasonable (not the Ag Comm.), BTA assisted the landowners with establishing a separate lot for the Town to purchase (not the Ag Comm), BTA sought CPA support and other Board approvals for the project (not the Ag Comm), BTA did the public relations, press releases, and local fundraising to assist the Town (not the Ag Comm), BTA applied for private grants and donated its own funds to assist the Town purchase (not the Ag Comm.), BTA has spent countless hours preparing the CR and ushering it through the approval process (not the Ag Comm), BTA assumes maintenance and monitoring responsibility for the CR (not the Ag Comm).

Probably no nice way to say this but when the Ag Comm works it's heart out hard to assist the Town with a land acquisition (if it ever does) BTA would be hard pressed to change the terms of that agreement especially at the 11th hour, the Ag Comm sort of has the same lack of standing now (unless you want them to have standing).

Basically it seems really late in the process to be adding a 3rd party review committee, and the additional time and expense and approvals that would require d not seem worth it at this point since the Ag comm. will likely be consulted with farming issues on the property anyway. Maybe at the outset with the next CR contemplating agricultural uses.

PROPERTY CONDITION CERTIFICATION

Conservation Restriction or Agricultural Preservation Restriction on Property "Davis Hayfield" to Boxford Trails Association / Boxford Open Land Trust, Inc.

This is to certify that, the Town of Boxford, "Grantor", and the Boxford Trails Association / Boxford Open Land Trust, Inc., "Grantee", accept and acknowledge the accompanying baseline documentation as an accurate representation of the protected property known as the "Davis Hayfield", **Boxford, Massachusetts (the "Property")**, at the time of the (donation) (purchase) of the **Conservation Restriction ("CR")** or Agricultural Preservation Restriction ("APR") on said Property from Grantor to Grantee. The baseline documentation was made available to Grantee prior to the date of the donation in compliance with Section 1.170A-14(g)(5)(i) of the federal tax regulations.

The baseline documentation may consist of:

1. Summary of the CR; *enclosed*
2. Plan of land *enclosed*
3. Orthophotograph Plan of the Property, dated [4/10/08];
4. Topographic Plan of the Property, dated [4/10/08];
5. Natural Resources Plan, dated [];
6. Massachusetts Natural Heritage and Endangered Species Plan, dated [];
7. Open Space Context Plan, dated [4/10/08];
8. Municipal Certification Form, completed by the Boxford Conservation Commission, dated [];
9. Photostations Plan of the Property, dated [04/10/08];
10. Photographs of the Property, taken by Alex vanAlen on [04/10/08].
11. Value ratio (to be inserted upon Grantor's submission to Grantee of federal gift acknowledgment Form 8283). NOT APPLICABLE

Dated: [], 2007]

TOWN OF BOXFORD, MA Grantor
By: _____

BOXFORD TRAILS ASSOCIATION / BOXFORD OPEN LAND TRUST, INC., Grantee

By: *Vanasha Giff*

1. SUMMARY OF THE CONSERVATION RESTRICTION/Agricultural Preservation Restriction

Purpose

- Property remains in its natural, scenic and open space condition.
- Provides drinking water supply protection. Is on Fishbrook, a tributary of the Ipswich River, a water supply to Essex County, Massachusetts
- Maintains historic landscape and/or may allow agricultural use.
- Protect and promote wildlife habitat.

Reserved Rights

Residential Uses: None

Forestry, Agricultural and Recreational Uses: Passive recreation; accepted forestry practices to maintain the woodland in a healthy state; to remove invasive species, maintaining the view easement of the historic hayfield among comparable neighboring landscapes

Landscape Management: See above - the field is to remain either as a hayfield to be actively mowed, or in agricultural condition suitable to an open, agricultural landscape

Other

Existing Improvements, if any

None

-

OPEN SPACE CONTEXT PLAN don't have one in proper format, but in fact, there is town owned conservation land abutting this property and several other pieces of town owned open space in the immediate vicinity

MUNICIPAL CERTIFICATION

PHOTOGRAPHS *enclosed*

VALUE RATIO **NOT APPLICABLE**

To be inserted upon Grantor's submission to Grantee of federal gift acknowledgment Form 8283

The land is located at the corner of

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